

FIRST ENDORSEMENT

Chief Prosecutor, APU, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr, Department Advocate's Office, April 4, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-24956 against Lieutenant Charles Senat Tax Registry No. 933345. The case was conferenced on March 28, 2024, before Assistant Deputy Commissioner of Trials Jeff Adler, who approved the dismissal of the charges in return for the recommended penalty of a Command Discipline Schedule (A) and the forfeiture of five (5) vacation days.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor, APU
New York City Civilian Complaint Review Board

DISAPPROVED

JUN 24 2024
Edward A. Caban
EDWARD A. CABAN
POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-24956
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE LT	SURNAME, SENAT	FIRST CHARLES	M.I. A	COMMAND 061 PRECINCT
SHIELD NO. 00000	TAX REGISTRY NO. 933345	SOCIAL SECURITY NO.	DATE APPOINTED 07/01/2003	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Lieutenant (then Sergeant) Charles SENAT, on or about March 2, 2020, at approximately 2315, while assigned to DB HATE and off duty, in the vicinity of Resorts World Casino NYC, 110-00 Rockaway Boulevard, Queens County, wrongfully used force, in that he placed his hand over § 87(2)(b) face, without police necessity.	DISMISSED	A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Lieutenant (then Sergeant) Charles SENAT, on or about March 2, 2020, at approximately 2315, while assigned to DB HATE and off duty, in the vicinity of Resorts World Casino NYC 110-00 Rockaway Boulevard), Queens County, wrongfully used force, in that he forcefully wrapped his arm around § 87(2)(b) without police necessity.	DISMISSED	

DC Burris
FIRST DEPUTY COMMISSIONER

5/31/24
DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

6/24/24
DATE



POLICE DEPARTMENT

June 18, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

Re: CCRB Case No. 202002178 (Incident Date: March 2, 2020 on DADS No. 2022-24956)
involving Lieutenant Charles Senat, Tax No. 933345

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Lieutenant Charles Senat and has determined that his actions do not warrant discipline.

In this matter, Lieutenant Senat (then Sergeant) was working a paid detail assignment when security staff at the location requested his assistance in escorting an intoxicated individual off the property. The individual refused and became physically combative. Lieutenant Senat used force to detain the individual and EMS removed the individual to the hospital. CCRB had exonerated Lieutenant Senat for using force to take the individual down in this incident. By the same logic, Lieutenant Senat was justified in his actions underlying the two allegations here (placing his hand on the individual's face and forcefully wrapping an arm around him) since these actions precipitated the takedown.

Therefore, the Police Commissioner finds Lieutenant Senat's actions to be within guidelines and intends to dismiss all Charges and Specifications in this matter and impose no disciplinary action.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: James Moschella, Esq.

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Website: <http://nyc.gov/nypd>



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

June 21, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202002178 (Incident Date: March 2, 2020 on DADS No. 2022-24956) involving Lieutenant Charles Senat, Tax No. 933345.

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated June 18, 2024. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between the CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

On March 28, 2024, in front of Assistant Deputy Commissioner Jeff Adler, Lieutenant Senat accepted the findings of substantiation contained in the Charges and Specifications in return for a recommendation of a Command Discipline Schedule A and the forfeiture of five (5) vacation days. Deputy Chief Marino stated that after reviewing the CCRB’s recommended penalty, you have determined that Lieutenant Senat’s actions do not warrant discipline. The CCRB disagrees with this determination.

As an initial matter, the provisions of Paragraph 2 of the MOU are inapplicable in this case. The MOU explicitly states that Paragraph 2 is only applicable to cases where there are either parallel or related criminal investigations or where the officer has no prior disciplinary history. Neither of these situations are present in this case. In 2010, Lieutenant Senat received a penalty of the forfeiture of thirty (30) vacation days for failing to safeguard prisoner property, failure to make entries regarding the lost property, and failing to immediately report the loss of the property to his immediate supervisor. Also in 2010, Lieutenant Senat received the forfeiture of four (4) hours for failing to give a radio disposition in a timely manner. See Summary of Employment History, dated December 28, 2023 (attached).

Additionally, the actions of Lieutenant Senat clearly constituted misconduct. While

Lieutenant Senat was justified in using some amount of force in restraining § 87(2)(b) the evidence demonstrated that Lieutenant Senat used an excessive amount of force. The video footage of this incident showed that, during the incident, Lieutenant Senat placed his hand over § 87(2)(b) nose and mouth for several seconds, and also that he forcefully wrapped his arm around § 87(2)(b) face and neck area. These uses of force, against a civilian who alone and who was surrounded by a number of security personnel who were assisting Lieutenant Senat, were excessive and unjustified.

The CCRB would ask the Police Commissioner to accept the CCRB's recommendation and penalty that was agreed to by Lieutenant Senat when he accepted the findings of substantiation, and impose upon Lieutenant Senat a Command Discipline A with the forfeiture of five (5) vacation days for this matter.

Respectfully submitted,



Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board